

Court No. - 39

Case :- WRIT - C No. - 45533 of 2014

Petitioner :- Rakesh Kumar

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Digvijay Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Shri Baleshwar Chaturvedi appearing for respondent nos. 2 and 3 prays for and is allowed 10 days' time to seek instructions in the matter.

Put up as fresh on 12th September, 2014.

Order Date :- 28.8.2014

VKS

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Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Heard Sri Digvijay Singh, learned counsel for the petitioner and Sri Kamal Kesarwani, holding brief of Sri Baleshwar Chaturvedi, who has accepted notice on behalf of the respondent corporation.

The petitioner has approached this Court challenging the demand notice dated 17.6.2014 issued by the respondent no.2 under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, requiring him to pay a sum of Rs.3,87,115/-.

From the pleadings, it appears that a surprise raid and checking was carried out at the tube-well of the petitioner, where he was found committing theft of electricity by operating a flour-mill from the connection of the tube-well and in this regard, an F.I.R. was lodged. Subsequently, a provisional assessment was made, against which no objection was filed and the same was treated to be a final assessment and the demand notice under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, was issued. The petitioner contends that he had not been served with any notice of provisional assessment and was denied the opportunity of raising an objection to the provisional assessment. Sri Kamal Kesarwani was allowed time to seek instructions in this regard.

Sri Kamal Kesarwani, on the basis of instructions received, states that the provisional assessment notice was served by ordinary post and there is no record to indicate that the same was actually served upon the petitioner. This Court, therefore, finds substance in the argument of the petitioner that he had not been served with any provisional assessment notice and thus, he was denied opportunity to file objection against it.

This Court in Ashok Kumar and others Vs. State of U.P. and others [2008 (6) ADJ 660 (DB)] from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In view of the aforesaid provisions, the writ petition is allowed and the impugned demand notice 17.6.2014 (Annexure-4 to the writ petition) issued under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, is hereby quashed. The respondents are directed to issue a fresh provisional assessment order and serve it upon the petitioner, giving fifteen days' time to file objection thereto and fixing a date and time for him to appear for hearing and thereafter proceed to pass final assessment order giving reasons after taking into account petitioner's objection, if any made, in light of the observations made in Ashok Kumar (Supra).

Order Date :- 12.9.2014/Ashok Kr.